

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

38. S/R ACCOUNT NO.	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT	42a. RECEIVED BY (<i>Print</i>)
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	42b. RECEIVED AT (<i>Location</i>)
41c. DATE	42c. DATE REC'D (YY/MM/DD)
	42d. TOTAL CONTAINERS

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Section B

Quality Technical Provisions

FUEL OIL, INTERMEDIATE, 38T, 1.3B

9140-014176632

PR #: 0087390901

IAW BASIC QAP 52838 ENERGY-QAP-C36-3

REVISION NR B DTD 02/01/2020

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E21.01

REVISION NR B DTD 06/26/2015

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E40.01

REVISION NR A DTD 07/08/2014

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E22

REVISION NR C DTD 08/07/2020

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E35

REVISION NR A DTD 12/01/2011

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E5.01

REVISION NR A DTD 01/01/2013

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E12

REVISION NR A DTD 07/30/2015

PART PIECE NUMBER:

Quality Technical Provisions

FUEL OIL, INTERMEDIA, 18T, 1.3B

9140-014176645

PR #: 0087390901

IAW BASIC QAP 52838 ENERGY-QAP-C36-4

REVISION NR B DTD 02/01/2020

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E21.01

REVISION NR B DTD 06/26/2015

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E40.01

REVISION NR A DTD 07/08/2014

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E22

REVISION NR C DTD 08/07/2020

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E35

REVISION NR A DTD 12/01/2011

PART PIECE NUMBER:

IAW REFERENCE QAP 52838 ENERGY-QAP-E5.01

REVISION NR A DTD 01/01/2013

PART PIECE NUMBER:

Quality Technical Provisions

GAS OIL, MARINE, MGT, 1.3B

9140-014176843

PR #: 0087390901

PR #: 0087390901

Item: 0001

Quantity: 6,000.000UoM: 7M

Period of Performance: 10/01/2021-09/30/2026

Escalator: PDSINGMGO - PLATTS DAILY BUNKERWIRE SINGAPORE MGO

Base-Ref: 12/08/2020 Base-Price: 407.000000

NSN
9140-014176843 (MGT)
GAS OIL, MARINE

Delivery Identification
LAEMCHA532 - LAEM CHABANG

State

Delivery Address: THAILIAND 48 99999

Service Code Delivery DODAAC Ordering Office DODAAC

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Section B						
BUNKR		LAEMCH				
Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction		
BARGE			25			

Item: 0002						
Quantity: 1,165.000UoM: 7M						
Period of Performance: 10/01/2021-09/30/2026						
Escalator: BWJAPNMD0 - DAILY BUNKERWIRE JAPAN MDO POACI00C						
Base-Ref: 12/08/2020 Base-Price: 460.000000						
NSN		Delivery Identification		State		
9140-014176843 (MGT)		PHONPEI502 - PHONPEI				
GAS OIL,MARINE						
Delivery Address: MICRONESIA 99999						
Service Code		Delivery DODAAC		Ordering Office DODAAC		
BUNKR		PHONPE				
Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction		
BARGE			50			

Item: 0003						
Quantity: 500.000UoM: 7M						
Period of Performance: 10/01/2021-09/30/2026						
Escalator: PDSINGMG0 - PLATTS DAILY BUNKERWIRE SINGAPORE MGO						
Base-Ref: 12/08/2020 Base-Price: 407.000000						
NSN		Delivery Identification		State		
9140-014176843 (MGT)		PORTKLANG - PORT KLANG				
GAS OIL,MARINE						
Delivery Address: MALAYSIA 99999						
Service Code		Delivery DODAAC		Ordering Office DODAAC		
BUNKR		PORTKL				
Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction		
BARGE			50			

Item: 0004						
Quantity: 1,000.000UoM: 7M						
Period of Performance: 10/01/2021-09/30/2026						
Escalator: PDSINGMG0 - PLATTS DAILY BUNKERWIRE SINGAPORE MGO						
Base-Ref: 12/08/2020 Base-Price: 407.000000						
NSN		Delivery Identification		State		
9140-014176843 (MGT)		SATTAGI672 - SATTAGI				
GAS OIL,MARINE						
Delivery Address: SATTAGI672 THAILAND 99999						
Service Code		Delivery DODAAC		Ordering Office DODAAC		
BUNKR						
Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction		
BARGE			100			

Item: 0005						
Quantity: 5,000.000UoM: 7M						
Period of Performance: 10/01/2021-09/30/2026						
Escalator: PDSINGMG0 - PLATTS DAILY BUNKERWIRE SINGAPORE MGO						
Base-Ref: 12/08/2020 Base-Price: 407.000000						
NSN		Delivery Identification		State		

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Section B

9140-014176843 (MGT) SUBICBA676 - SUBIC BAY
GAS OIL, MARINE

Delivery Address: PHILIPPINES 99999

Service Code Delivery DODAAC Ordering Office DODAAC
BUNKR SUBICB

Mode Receipt % Max Parcel Min Parcel FOB Restriction
BARGE 25

Item: 0006
Quantity: 800.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: PDSINGMGO - PLATTS DAILY BUNKERWIRE SINGAPORE MGO
Base-Ref: 12/08/2020 **Base-Price:** 407.000000

NSN Delivery Identification State
9140-014176843 (MGT) VIZAG - VISAKHAPATNAM PORT
GAS OIL, MARINE

Delivery Address: Visakhapatnam 99999

Service Code Delivery DODAAC Ordering Office DODAAC
DLA VIZAG

Mode Receipt % Max Parcel Min Parcel FOB Restriction
BARGE

Item: 0007
Quantity: 1,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: PDSINGMGO - PLATTS DAILY BUNKERWIRE SINGAPORE MGO
Base-Ref: 12/08/2020 **Base-Price:** 407.000000

NSN Delivery Identification State
9140-014176843 (MGT) PHUKET533 - PHUKET
GAS OIL, MARINE 48

Delivery Address: THAILIAND 48 99999

Service Code Delivery DODAAC Ordering Office DODAAC
BUNKR PHUKET

Mode Receipt % Max Parcel Min Parcel FOB Restriction
BARGE 50

Item: 0008
Quantity: 5,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWJAPNMDO - DAILY BUNKERWIRE JAPAN MDO POACI00C
Base-Ref: 12/08/2020 **Base-Price:** 460.000000

NSN Delivery Identification State
9140-014176843 (MGT) SASEB0765 - SASEBO
GAS OIL, MARINE JP

Delivery Address: JAPAN JP 99999

Service Code Delivery DODAAC Ordering Office DODAAC
BUNKR SASEBO

Mode Receipt % Max Parcel Min Parcel FOB Restriction
BARGE

Item: 0009
Quantity: 800.000**UoM:** 7M

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Section B

Period of Performance: 10/01/2021-09/30/2026

Escalator: PDSING380 - PLATTS DAILY BUNKERWIRE SINGAPORE 380

Base-Ref: 12/08/2020 **Base-Price:** 301.750000

NSN 9140-014176632 (38T) FUEL OIL, INTERMEDIATE	Delivery Identification SINGAPO956 - SINGAPORE	State KR
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Delivery Address: SOUTH KOREA KR 99999

Service Code DLA	Delivery DODAAC SINGAP	Ordering Office DODAAC
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Mode BARGE	Receipt %	Max Parcel	Min Parcel 50	FOB Restriction
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Item: 0010

Quantity: 4,000.000UoM: 7M

Period of Performance: 10/01/2021-09/30/2026

Escalator: PDSING180 - PLATTS DAILY BUNKERWIRE SINGAPORE 180

Base-Ref: 12/08/2020 **Base-Price:** 305.000000

NSN 9140-014176645 (18T) FUEL OIL, INTERMEDIA	Delivery Identification SINGAPO956 - SINGAPORE	State KR
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Delivery Address: SOUTH KOREA KR 99999

Service Code DLA	Delivery DODAAC SINGAP	Ordering Office DODAAC
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Mode BARGE	Receipt %	Max Parcel	Min Parcel 25	FOB Restriction
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Item: 0011

Quantity: 9,000.000UoM: 7M

Period of Performance: 10/01/2021-09/30/2026

Escalator: PDSINGMGO - PLATTS DAILY BUNKERWIRE SINGAPORE MGO

Base-Ref: 12/08/2020 **Base-Price:** 407.000000

NSN 9140-014176843 (MGT) GAS OIL, MARINE	Delivery Identification SINGAPO956 - SINGAPORE	State KR
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Delivery Address: SOUTH KOREA KR 99999

Service Code DLA	Delivery DODAAC SINGAP	Ordering Office DODAAC
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Mode BARGE	Receipt %	Max Parcel	Min Parcel 25	FOB Restriction
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Item: 0012

Quantity: 1,000.000UoM: 7M

Period of Performance: 10/01/2021-09/30/2026

Escalator: BWJPAN380 - DAILY PLATTS JAPAN BUNRWIRE 380 PUAEV00C

Base-Ref: 12/08/2020 **Base-Price:** 328.000000

NSN 9140-014176632 (38T) FUEL OIL, INTERMEDIATE	Delivery Identification YOKOSUK766 - YOKOSUKA	State KR
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Delivery Address: JAPAN KR 99999

Service Code BUNKR	Delivery DODAAC YOKOSU	Ordering Office DODAAC
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Mode BARGE	Receipt %	Max Parcel	Min Parcel 100	FOB Restriction
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Section B

Item: 0013
Quantity: 1,500.000UoM: 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWJAPAN180 - DAILY BUNKERWIRE JAPAN 180
Base-Ref: 12/08/2020 **Base-Price:** 332.000000

NSN	Delivery Identification	State
9140-014176645 (18T)	YOKOSUK766 - YOKOSUKA	KR
FUEL OIL,INTERMEDIA		

Delivery Address: JAPAN KR 99999

Service Code	Delivery DODAAC	Ordering Office DODAAC
BUNKR	YOKOSU	

Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction
BARGE			100	

Item: 0014
Quantity: 1,500.000UoM: 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: PDSINGMGO - PLATTS DAILY BUNKERWIRE SINGAPORE MGO
Base-Ref: 12/08/2020 **Base-Price:** 407.000000

NSN	Delivery Identification	State
9140-014176843 (MGT)	PORTOFS662 - PORT OF SEPANGAR	PSK
GAS OIL,MARINE		

Delivery Address: MALAYSIA PSK 99999

Service Code	Delivery DODAAC	Ordering Office DODAAC
BUNKR	PORTOF	

Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction
BARGE			50	

Item: 0015
Quantity: 1,500.000UoM: 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: PDSINGMGO - PLATTS DAILY BUNKERWIRE SINGAPORE MGO
Base-Ref: 12/08/2020 **Base-Price:** 407.000000

NSN	Delivery Identification	State
9140-014176843 (MGT)	CEBU674 - CEBU	
GAS OIL,MARINE		

Delivery Address: PHILIPPINES 99999

Service Code	Delivery DODAAC	Ordering Office DODAAC
BUNKR	CEBU67	

Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction
BARGE			25	

Item: 0016
Quantity: 15,000.000UoM: 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKORMGO - DAILY BUNKERWIRE SOUTH KOREA MGO
Base-Ref: 12/08/2020 **Base-Price:** 455.500000

NSN	Delivery Identification	State
9140-014176843 (MGT)	CHINHAE955 - CHINHAE	
GAS OIL,MARINE		

Delivery Address: KOREA 99999

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Section B

Service Code BUNKR	Delivery DODAAC CHINHA	Ordering Office DODAAC		
Mode BARGE	Receipt %	Max Parcel	Min Parcel 50	FOB Restriction

Item: 0017
Quantity: 15,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKOR180 - DAILY BUNKERWIRE SOUTH KOREA 180
Base-Ref: 12/08/2020 **Base-Price:** 362.000000

NSN 9140-014176645 (18T) FUEL OIL,INTERMEDIA	Delivery Identification GWANGYA958 - GWANGYANG/YOSU	State
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Delivery Address: KOREA 99999

Service Code BUNKR	Delivery DODAAC GWANGY	Ordering Office DODAAC		
Mode BARGE	Receipt %	Max Parcel	Min Parcel 50	FOB Restriction

Item: 0018
Quantity: 10,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKORMGO - DAILY BUNERWIRE SOUTH KOREA MGO
Base-Ref: 12/08/2020 **Base-Price:** 455.500000

NSN 9140-014176843 (MGT) GAS OIL,MARINE	Delivery Identification GWANGYA958 - GWANGYANG/YOSU	State
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Delivery Address: KOREA 99999

Service Code BUNKR	Delivery DODAAC GWANGY	Ordering Office DODAAC		
Mode BARGE	Receipt %	Max Parcel	Min Parcel 500	FOB Restriction

Item: 0019
Quantity: 2,130.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWHGKGMGO - DAILY BUNKERWIRE HONG KONG MGO
Base-Ref: 12/08/2020 **Base-Price:** 460.000000

NSN 9140-014176843 (MGT) GAS OIL,MARINE	Delivery Identification HONGKON654 - HONG KONG	State
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Delivery Address: CHINA 99999

Service Code BUNKR	Delivery DODAAC HONGKO	Ordering Office DODAAC		
Mode BARGE	Receipt %	Max Parcel	Min Parcel 50	FOB Restriction

Item: 0020
Quantity: 1,650.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: PDSINGMGO - PLATTS DAILY BUNKERWIRE SINGAPORE MGO
Base-Ref: 12/08/2020 **Base-Price:** 407.000000

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Section B

NSN
9140-014176843 (MGT)
GAS OIL,MARINE

Delivery Identification
MANILABGA - MANILA

State

Delivery Address: PHILIPPINES 99999

Service Code
BUNKR

Delivery DODAAC
MANILA

Ordering Office DODAAC

Mode
BARGE

Receipt %

Max Parcel

Min Parcel
200

FOB Restriction

Item: 0021
Quantity: 15,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWJAPNMD0 - DAILY BUNKERWIRE JAPAN MDO POACI00C
Base-Ref: 12/08/2020 **Base-Price:** 460.000000

NSN
9140-014176843 (MGT)
GAS OIL,MARINE

Delivery Identification
NAHA774 - NAHA

State

Delivery Address: JAPAN 99999

Service Code
DLA

Delivery DODAAC
NAHA77

Ordering Office DODAAC

Mode
BARGE

Receipt %

Max Parcel

Min Parcel
150

FOB Restriction

Delivery Mode Notes:

Delivery Notes: THIS ITEM IS PENDING - CONTRACT FOR THIS ITEM EXPIRED 30 SEPT 2012

Delivery Ticket Notes:

Item: 0022
Quantity: 1,500.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKOR380 - DAILY BUNKERWIRE SOUTH KOREA 380
Base-Ref: 12/08/2020 **Base-Price:** 358.000000

NSN
9140-014176632 (38T)
FUEL OIL,INTERMEDIATE

Delivery Identification
POHANGA954 - POHANG AND/OR ULSAN

State

Delivery Address: KOREA 99999

Service Code
DLA

Delivery DODAAC
POHANG

Ordering Office DODAAC

Mode
BARGE

Receipt %

Max Parcel

Min Parcel
150

FOB Restriction

Item: 0023
Quantity: 1,500.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKOR180 - DAILY BUNKERWIRE SOUTH KOREA 180
Base-Ref: 12/08/2020 **Base-Price:** 362.000000

NSN
9140-014176645 (18T)
FUEL OIL,INTERMEDIA

Delivery Identification
POHANGA954 - POHANG AND/OR ULSAN

State

Delivery Address: KOREA 99999

Service Code
DLA

Delivery DODAAC
POHANG

Ordering Office DODAAC

Section B

Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction
BARGE			150	

Item: 0024
Quantity: 5,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKORMGO - DAILY BUNERWIRE SOUTH KOREA MGO
Base-Ref: 12/08/2020 **Base-Price:** 455.500000

NSN	Delivery Identification	State
9140-014176843 (MGT)	POHANGA954 - POHANG AND/OR ULSAN	
GAS OIL, MARINE		

Delivery Address: KOREA 99999

Service Code	Delivery DODAAC	Ordering Office DODAAC
DLA	POHANG	

Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction
BARGE			50	

Item: 0025
Quantity: 4,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKOR380 - DAILY BUNKERWIRE SOUTH KOREA 380
Base-Ref: 12/08/2020 **Base-Price:** 358.000000

NSN	Delivery Identification	State
9140-014176632 (38T)	PUSAN953 - PUSAN	KR
FUEL OIL, INTERMEDIATE		

Delivery Address: KOREA KR 99999

Service Code	Delivery DODAAC	Ordering Office DODAAC
BUNKR	PUSAN9	

Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction
BARGE			150	

Item: 0026
Quantity: 1,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSHNGMGO - DAILY BUNKERWIRE SHANGHAI MGO
Base-Ref: 12/08/2020 **Base-Price:** 455.500000

NSN	Delivery Identification	State
9140-014176843 (MGT)	PYONGTA559 - PYONGTAEK	KR
GAS OIL, MARINE		

Delivery Address: KOREA KR 99999

Service Code	Delivery DODAAC	Ordering Office DODAAC
DLA	PYONGT	

Mode	Receipt %	Max Parcel	Min Parcel	FOB Restriction
BARGE			50	

Item: 0028
Quantity: 3,000.000**UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKOR380 - DAILY BUNKERWIRE SOUTH KOREA 380
Base-Ref: 12/08/2020 **Base-Price:** 358.000000

NSN	Delivery Identification	State
9140-014176632 (38T)	GWANGYA958 - GWANGYANG/YOSU	

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Section B

FUEL OIL, INTERMEDIATE

Delivery Address: KOREA 99999

Service Code BUNKR	Delivery DODAAC GWANGY	Ordering Office DODAAC
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Mode BARGE	Receipt %	Max Parcel	Min Parcel	FOB Restriction
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Item: 0029
Quantity: 5,000.000 **UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKORMGO - DAILY BUNERWIRE SOUTH KOREA MGO
Base-Ref: 12/08/2020 **Base-Price:** 455.500000

NSN 9140-014176843 (MGT) GAS OIL, MARINE	Delivery Identification PUSAN953 - PUSAN	State KR
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Delivery Address: KOREA KR 99999

Service Code BUNKR	Delivery DODAAC PUSAN9	Ordering Office DODAAC
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Mode BARGE	Receipt %	Max Parcel	Min Parcel	FOB Restriction
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Item: 0030
Quantity: 15,000.000 **UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: BWSKOR180 - DAILY BUNKERWIRE SOUTH KOREA 180
Base-Ref: 12/08/2020 **Base-Price:** 362.000000

NSN 9140-014176645 (18T) FUEL OIL, INTERMEDIA	Delivery Identification PUSAN953 - PUSAN	State KR
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Delivery Address: KOREA KR 99999

Service Code BUNKR	Delivery DODAAC PUSAN9	Ordering Office DODAAC
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Mode BARGE	Receipt %	Max Parcel	Min Parcel	FOB Restriction
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Item: 0031
Quantity: 1,960.000 **UoM:** 7M
Period of Performance: 10/01/2021-09/30/2026
Escalator: PDSINGMGO - PLATTS DAILY BUNKERWIRE SINGAPORE MGO
Base-Ref: 12/08/2020 **Base-Price:** 407.000000

NSN 9140-014176843 (MGT) GAS OIL, MARINE	Delivery Identification CHENNAI - CHENNAI	State
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Delivery Address: INDIA 99999

Service Code BUNKR	Delivery DODAAC CHENNA	Ordering Office DODAAC
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Mode BARGE	Receipt %	Max Parcel	Min Parcel 50	FOB Restriction
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SECTION A - SOLICITATION/CONTRACT FORM

TECHNICAL REQUIREMENTS

THIS DOCUMENT INCORPORATES TECHNICAL AND/OR QUALITY REQUIREMENTS (IDENTIFIED BY AN 'R' OR AN 'I' NUMBER IN SECTION B) SET FORTH IN FULL TEXT IN THE DLA MASTER LIST OF TECHNICAL AND QUALITY REQUIREMENTS FOUND ON THE WEB AT: <http://www.dla.mil/HQ/Acquisition/Offers/eProcurement.aspx>. FOR SIMPLIFIED ACQUISITIONS, THE REVISION OF THE MASTER IN EFFECT ON THE SOLICITATION ISSUE DATE OR THE AWARD DATE CONTROLS. FOR LARGE ACQUISITIONS, THE REVISION OF THE MASTER IN EFFECT ON THE RFP ISSUE DATE APPLIES UNLESS A SOLICITATION AMENDMENT INCORPORATES A FOLLOW-ON REVISION, IN WHICH CASE THE AMENDMENT DATE CONTROLS.

SECTION C - SPECIFICATIONS/SOW/SOO/ORD

C03 CONTRACTOR RETENTION OF SUPPLY CHAIN TRACEABILITY DOCUMENTATION (JUN 2020)

SECTION D - PACKAGING AND MARKING

252.211-7006 PASSIVE RADIO FREQUENCY IDENTIFICATION (DEC 2019) DFARS

(a) *Definitions.* As used in this clause --

"Advance shipment notice" means an electronic notification used to list the contents of a shipment of goods as well as additional information relating to the shipment, such as passive radio frequency identification (RFID) or item unique identification (IUID) information, order information, product description, physical characteristics, type of packaging, marking, carrier information, and configuration of goods within the transportation equipment.

"Bulk commodities" means the following commodities, when shipped in rail tank cars, tanker trucks, trailers, other bulk wheeled conveyances, or pipelines:

- (1) Sand.
- (2) Gravel.
- (3) Bulk liquids (water, chemicals, or petroleum products).
- (4) Ready-mix concrete or similar construction materials.
- (5) Coal or combustibles such as firewood.
- (6) Agricultural products such as seeds, grains, or animal feed.

"Case" means either a MIL-STD-129 defined exterior container within a palletized unit load or a MIL-STD-129 defined individual shipping container.

"Electronic Product Code™ (EPC)" means an identification scheme for universally identifying physical objects via RFID tags and other means. The standardized EPC data consists of an EPC (or EPC identifier) that uniquely identifies an individual object, as well as an optional filter value when judged to be necessary to enable effective and efficient reading of the EPC tags. In addition to this standardized data, certain classes of EPC tags will allow user-defined data. The EPC Tag Data Standards will define the length and position of this data, without defining its content.

"EPCglobal®" means a subscriber-driven organization comprised of industry leaders and organizations focused on creating global standards for the adoption of passive RFID technology.

"Exterior container" means a MIL-STD-129 defined container, bundle, or assembly that is sufficient by reason of material, design, and construction to protect unit packs and intermediate containers and their contents during shipment and storage. It can be a unit pack or a container with a combination of unit packs or intermediate containers. An exterior container may or may not be used as a shipping container.

"Palletized unit load" means a MIL-STD-129 defined quantity of items, packed or unpacked, arranged on a pallet in a specified manner and secured, strapped, or fastened on the pallet so that the whole palletized load is handled as a single unit. A palletized or skidded load is not considered to be a shipping container. A loaded 463L System pallet is not considered to be a palletized unit load. Refer to the Defense Transportation Regulation, DoD 4500.9-R, Part II, Chapter 203, for marking of 463L System pallets.

"Passive RFID tag" means a tag that reflects energy from the reader/interrogator or that receives and temporarily stores a small amount of energy from the reader/interrogator signal in order to generate the tag response. The only acceptable tags are EPC Class 1 passive RFID tags that meet the EPCglobal™ Class 1 Generation 2 standard.

"Radio frequency identification (RFID)" means an automatic identification and data capture technology comprising one or more reader/interrogators and one or more radio frequency transponders in which data transfer is achieved by means of suitably modulated inductive or radiating electromagnetic carriers.

"Shipping container" means a MIL-STD-129 defined exterior container that meets carrier regulations and is of sufficient strength, by reason of

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SECTION D - PACKAGING AND MARKING (CONTINUED)

material, design, and construction, to be shipped safely without further packing (e.g., wooden boxes or crates, fiber and metal drums, and corrugated and solid fiberboard boxes).

(b)(1) Except as provided in paragraph (b)(2) of this clause, the Contractor shall affix passive RFID tags, at the case- and palletized-unit-load packaging levels, for shipments of items that --

(i) Are in any of the following classes of supply, as defined in DoD Manual 4140.01, Volume 6, DoD Supply Chain Materiel Management Procedures: Materiel Returns, Retention, and Disposition:

(A) Subclass of Class I - Packaged operational rations.

(B) Class II - Clothing, individual equipment, tentage, organizational tool kits, hand tools, and administrative and housekeeping supplies and equipment.

(C) Class IIIP - Packaged petroleum, lubricants, oils, preservatives, chemicals, and additives.

(D) Class IV - Construction and barrier materials.

(E) Class VI - Personal demand items (non-military sales items).

(F) Subclass of Class VIII - Medical materials (excluding pharmaceuticals, biologicals, and reagents - suppliers should limit the mixing of excluded and non-excluded materials).

(G) Class IX - Repair parts and components including kits, assemblies and subassemblies, repairable and consumable items required for maintenance support of all equipment, excluding medical-peculiar repair parts; and

(ii) Are being shipped to one of the locations listed at https://www.acq.osd.mil/log/sci/RFID_ship-to-locations.html or to --

(A) A location outside the contiguous United States when the shipment has been assigned Transportation Priority 1, or to --

(B) The following location(s) deemed necessary by the requiring activity:

Contract Line, Subline, or Exhibit Line Item Number	Location Name	City	State	DoDAAC

(2) The following are excluded from the requirements of paragraph (b)(1) of this clause:

(i) Shipments of bulk commodities.

(ii) Shipments to locations other than Defense Distribution Depots when the contract includes the clause at FAR 52.213-1, Fast Payment Procedures.

(c) The Contractor shall --

(1) Ensure that the data encoded on each passive RFID tag are globally unique (i.e., the tag ID is never repeated across two or more RFID tags and conforms to the requirements in paragraph (d) of this clause;

(2) Use passive tags that are readable; and

(3) Ensure that the passive tag is affixed at the appropriate location on the specific level of packaging, in accordance with MIL-STD-129 (Section 4.9.2) tag placement specifications.

(d) *Data syntax and standards.* The Contractor shall encode an approved RFID tag using the instructions provided in the EPC™ Tag Data Standards in effect at the time of contract award. The EPC™ Tag Data Standards are available at <http://www.gs1.org/epc-rfid>.

(1) If the Contractor is an EPCglobal™ subscriber and possesses a unique EPC™ company prefix, the Contractor may use any of the identifiers and encoding instructions described in the most recent EPC™ Tag Data Standards document to encode tags.

(2) If the Contractor chooses to employ the DoD identifier, the Contractor shall use its previously assigned Commercial and Government Entity (CAGE) code and shall encode the tags in accordance with the tag identifier details located in the DoD Suppliers' Passive RFID Information Guide at <http://www.acq.osd.mil/log/sci/ait.html>. If the Contractor uses a third-party packaging house to encode its tags, the CAGE code of the third-party packaging house is acceptable.

(3) Regardless of the selected encoding scheme, the Contractor with which the Department holds the contract is responsible for ensuring that the tag ID encoded on each passive RFID tag is globally unique, per the requirements in paragraph (c)(1).

(e) *Advance shipment notice.* The Contractor shall use Wide Area WorkFlow (WAWF), as required by DFARS [252.232-7003](#), Electronic Submission of Payment Requests, to electronically submit advance shipment notice(s) with the RFID tag ID(s) (specified in paragraph (d) of this clause) in advance of the shipment in accordance with the procedures at <https://wawf.eb.mil/>.

(End of clause)

SECTION E - INSPECTION AND ACCEPTANCE

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SECTION I - CONTRACT CLAUSES (CONTINUED)

252.225-7002 QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS (DEC 2016) DFARS

252.231-7000 SUPPLEMENTAL COST PRINCIPLES (DEC 1991) DFARS

52.232-1 PAYMENTS (APR 1984) FAR

52.232-8 DISCOUNTS FOR PROMPT PAYMENT (FEB 2002) FAR

52.232-11 EXTRAS (APR 1984) FAR

52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018) FAR

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (DEC 2013) FAR

252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018) DFARS

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (DEC 2018) DFARS

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

(b) *Electronic invoicing.* The WAWF system is the method to electronically process vendor payment requests and receiving reports, as authorized by DFARS 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.acquisition.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor must use the following information when submitting payment requests and receiving reports in WAWF for this contract/order:

(1) *Document type.* The Contractor shall use the following document type(s).

(Contracting Officer: Insert applicable document type(s).

Note: If a "Combo" document type is identified but not supportable by the Contractor's business systems, an "Invoice" (stand-alone) and "Receiving Report" (stand-alone) document type may be used instead.)

(2) *Inspection/acceptance location.* The Contractor shall select the following inspection/acceptance location(s) in WAWF, as specified by the contracting officer.

(Contracting Officer: Insert inspection and acceptance locations or "Not applicable.")

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	
Issue By DoDAAC	

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SECTION I - CONTRACT CLAUSES (CONTINUED)

Field Name in WAWF	Data to be entered in WAWF
Admin DoDAAC	
Inspect By DoDAAC	
Ship To Code	
Ship From Code	
Mark For Code	
Service Approver (DoDAAC)	
Service Acceptor (DoDAAC)	
Accept at Other DoDAAC	
LPO DoDAAC	
DCAA Auditor DoDAAC	
Other DoDAAC(s)	

(*Contracting Officer: Insert applicable DoDAAC information or "See schedule" if multiple ship to/acceptance locations apply, or "Not applicable.")

(4) *Payment request and supporting documentation.* The Contractor shall ensure a payment request includes appropriate contract line item and subline item descriptions of the work performed or supplies delivered, unit price/cost per unit, fee (if applicable), and all relevant back-up documentation, as defined in DFARS Appendix F, (e.g. timesheets) in support of each payment request.

(5) *WAWF email notifications.* The Contractor shall enter the e-mail address identified below in the "Send Additional Email Notifications" field of WAWF once a document is submitted in the system.

(Contracting Officer: Insert applicable email addresses or "Not applicable.")

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) For technical WAWF help, contact the WAWF helpdesk at 866-618-5988.

(End of clause)

52.233-1 DISPUTES (MAY 2014) FAR

52.233-3 PROTEST AFTER AWARD (AUG 1996) FAR

52.243-1 CHANGES - FIXED PRICE (AUG 1987) FAR

252.243-7001 PRICING OF CONTRACT MODIFICATIONS (DEC 1991) DFARS

252.244-7000 SUBCONTRACTS FOR COMMERCIAL ITEMS (OCT 2020) DFARS

52.246-23 LIMITATION OF LIABILITY (FEB 1997) FAR

252.247-7023 TRANSPORTATION OF SUPPLIES BY SEA -- BASIC (FEB 2019) DFARS

(a) Definitions. As used in this clause --

"Components" means articles, materials, and supplies incorporated directly into end products at any level of manufacture, fabrication, or assembly by the Contractor or any subcontractor.

"Department of Defense" (DoD) means the Army, Navy, Air Force, Marine Corps, and defense agencies.

"Foreign-flag vessel" means any vessel that is not a U.S.-flag vessel.

"Ocean transportation" means any transportation aboard a ship, vessel, boat, barge, or ferry through international waters.

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SECTION I - CONTRACT CLAUSES (CONTINUED)

"Subcontractor" means a supplier, materialman, distributor, or vendor at any level below the prime contractor whose contractual obligation to perform results from, or is conditioned upon, award of the prime contract and who is performing any part of the work or other requirement of the prime contract.

"Supplies" means all property, except land and interests in land, that is clearly identifiable for eventual use by or owned by the DoD at the time of transportation by sea.

(i) An item is clearly identifiable for eventual use by the DoD if, for example, the contract documentation contains a reference to a DoD contract number or a military destination.

(ii) "Supplies" includes (but is not limited to) public works; buildings and facilities; ships; floating equipment and vessels of every character, type, and description, with parts, subassemblies, accessories, and equipment; machine tools; material; equipment; stores of all kinds; end items; construction materials; and components of the foregoing.

"U.S.-flag vessel" means a vessel of the United States or belonging to the United States, including any vessel registered or having national status under the laws of the United States.

(b)(1) The Contractor shall use U.S.-flag vessels when transporting any supplies by sea under this contract.

(2) A subcontractor transporting supplies by sea under this contract shall use U.S.-flag vessels if --

(i) This contract is a construction contract; or

(ii) The supplies being transported are --

(A) Noncommercial items; or

(B) Commercial items that --

(1) The Contractor is reselling or distributing to the Government without adding value (generally, the Contractor does not add value to items that it subcontracts for f.o.b. destination shipment);

(2) Are shipped in direct support of U.S. military contingency operations, exercises, or forces deployed in humanitarian or peacekeeping operations; or

(3) Are commissary or exchange cargoes transported outside of the Defense Transportation System in accordance with 10 U.S.C. 2643.

(c) The Contractor and its subcontractors may request that the Contracting Officer authorize shipment in foreign-flag vessels, or designate available U.S.-flag vessels, if the Contractor or a subcontractor believes that --

(1) U.S.-flag vessels are not available for timely shipment;

(2) The freight charges are inordinately excessive or unreasonable; or

(3) Freight charges are higher than charges to private persons for transportation of like goods.

(d) The Contractor must submit any request for use of foreign-flag vessels in writing to the Contracting Officer at least 45 days prior to the sailing date necessary to meet its delivery schedules. The Contracting Officer will process requests submitted after such date(s) as expeditiously as possible, but the Contracting Officer's failure to grant approvals to meet the shipper's sailing date will not of itself constitute a compensable delay under this or any other clause of this contract. Requests shall contain at a minimum --

(1) Type, weight, and cube of cargo;

(2) Required shipping date;

(3) Special handling and discharge requirements;

(4) Loading and discharge points;

(5) Name of shipper and consignee;

(6) Prime contract number; and

(7) A documented description of efforts made to secure U.S.-flag vessels, including points of contact (with names and telephone numbers) with at least two U.S.-flag carriers contacted. Copies of telephone notes, telegraphic and facsimile message or letters will be sufficient for this purpose.

(e) The Contractor shall, within 30 days after each shipment covered by this clause, provide the Contracting Officer and the Maritime Administration, Office of Cargo Preference, U.S. Department of Transportation, 400 Seventh Street SW, Washington, DC 20590, one copy of the rated on board vessel operating carrier's ocean bill of lading, which shall contain the following information:

(1) Prime contract number;

(2) Name of vessel;

(3) Vessel flag of registry;

(4) Date of loading;

(5) Port of loading;

(6) Port of final discharge;

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SECTION I - CONTRACT CLAUSES (CONTINUED)

- (7) Description of commodity;
- (8) Gross weight in pounds and cubic feet if available;
- (9) Total ocean freight in U.S. dollars; and
- (10) Name of steamship company.

(f) If this contract exceeds the simplified acquisition threshold, the Contractor shall provide with its final invoice under this contract a representation that to the best of its knowledge and belief --

- (1) No ocean transportation was used in the performance of this contract;
- (2) Ocean transportation was used and only U.S.-flag vessels were used for all ocean shipments under the contract;
- (3) Ocean transportation was used, and the Contractor had the written consent of the Contracting Officer for all foreign-flag ocean transportation; or
- (4) Ocean transportation was used and some or all of the shipments were made on foreign-flag vessels without the written consent of the Contracting Officer. The Contractor shall describe these shipments in the following format:

*	ITEM DESCRIPTION	CONTRACT LINE ITEMS	QUANTITY
TOTAL			

(g) If this contract exceeds the simplified acquisition threshold and the final invoice does not include the required representation, the Government will reject and return it to the Contractor as an improper invoice for the purposes of the Prompt Payment clause of this contract. In the event there has been unauthorized use of foreign-flag vessels in the performance of this contract, the Contracting Officer is entitled to equitably adjust the contract, based on the unauthorized use.

(h) If the Contractor indicated in response to the solicitation provision, Representation of Extent of Transportation by Sea, that it did not anticipate transporting by sea any supplies; however, after the award of this contract, the Contractor learns that supplies will be transported by sea, the Contractor shall --

- (1) Notify the Contracting Officer of that fact; and
- (2) Comply with all the terms and conditions of this clause.

(i) In the award of subcontracts, for the types of supplies described in paragraph (b)(2) of this clause, including subcontracts for commercial items, the Contractor shall flow down the requirements of this clause as follows:

- (1) The Contractor shall insert the substance of this clause, including this paragraph (i), in subcontracts that exceed the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.
- (2) The Contractor shall insert the substance of paragraphs (a) through (e) of this clause, and this paragraph (i), in subcontracts that are at or below the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998) FAR

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/?q=browsefar>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

DLAD: <http://www.dla.mil/HQ/Acquisition/Offers/DLAD.aspx>

(End of clause)

52.253-1 COMPUTER GENERATED FORMS (JAN 1991) FAR

252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES - REPRESENTATION (DEC 2019) DFARS

- (a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause [252.204-7018](#), Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.
- (b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".
- (c) *Representation.* The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services

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SECTION I - CONTRACT CLAUSES (CONTINUED)

as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
(End of provision)

252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (DEC 2019) DFARS

252.204-7019 NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2020) DFARS

(a) Definitions.

Basic Assessment, Medium Assessment, and High Assessment have the meaning given in the clause 252.204 -7020, NIST SP 800 -171 DoD Assessments.

Covered contractor information system has the meaning given in the clause 252.204 -7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this solicitation.

(b) Requirement. In order to be considered for award, if the Offeror is required to implement NIST SP 800 -171, the Offeror shall have a current assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) (see 252.204 -7020) for each covered contractor information system that is relevant to the offer, contract, task order, or delivery order. The Basic, Medium, and High NIST SP 800 -171 DoD Assessments are described in the NIST SP 800 -171 DoD Assessment Methodology located at https://www.acq.osd.mil/dpap/pdi/cyber/strategically_assessing_contractor_implementation_of_NIST_SP_800-171.html.

(c) Procedures.

(1) The Offeror shall verify that summary level scores of a current NIST SP 800 -171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) for all covered contractor information systems relevant to the offer.

(2) If the Offeror does not have summary level scores of a current NIST SP 800 -171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the Offeror may conduct and submit a Basic Assessment to webptsmh@navy.mil for posting to SPRS in the format identified in paragraph (d) of this provision.

(d) Summary level scores. Summary level scores for all assessments will be posted 30 days post-assessment in SPRS to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) Basic Assessments. An Offeror may follow the procedures in paragraph (c)(2) of this provision for posting Basic Assessments to SPRS.

(i) The email shall include the following information:

- (A) Cybersecurity standard assessed (e.g., NIST SP 800 -171 Rev 1).
- (B) Organization conducting the assessment (e.g., Contractor self-assessment).
- (C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract --
 - (1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and
 - (2) A brief description of the system security plan architecture, if more than one plan exists.
- (D) Date the assessment was completed.
- (E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).
- (F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.

(ii) If multiple system security plans are addressed in the email described at paragraph (d)(1)(i) of this section, the Offeror shall use the following format for the report:

System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will achieved

(2) Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system assessed:

- (i) The standard assessed (e.g., NIST SP 800 -171 Rev 1).
- (ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).
- (iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

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SECTION I - CONTRACT CLAUSES (CONTINUED)

(iv) A brief description of the system security plan architecture, if more than one system security plan exists.

(v) Date and level of the assessment, *i.e.*, medium or high.

(vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).

(vii) Date that all requirements are expected to be implemented (*i.e.*, a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.

(3) *Accessibility.* (i) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(ii) Authorized representatives of the Offeror for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(iii) A High NIST SP 800 -171 DoD Assessment may result in documentation in addition to that listed in this section. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (OCT 2020) FAR

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services --Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to --

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to --

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) *Representations.* The Offeror represents that --

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information

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SECTION I - CONTRACT CLAUSES (CONTINUED)

required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that --

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment --

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services --

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment --

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services --

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020) FAR

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it [] does, [] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

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SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS (CONTINUED)

SECTION L - INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

52.204-6 UNIQUE ENTITY IDENTIFIER (OCT 2016) FAR

252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016) DFARS

52.216-1 TYPE OF CONTRACT (APR 1984) FAR

As prescribed in [16.105](#) , complete and insert the following provision

The Government contemplates award of a contract resulting from this solicitation.

(End of provision)

SECTION M - EVALUATION FACTORS FOR AWARD

M05 EVALUATION FACTOR FOR USED, RECONDITIONED, REMANUFACTURED SUPPLIES OR UNUSED FORMER GOVERNMENT SURPLUS PROPERTY (SEP 2016)